

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
HON. Temporary Judge Catherine Evans

Date: 1/7/2026

Court Room Rules and Notices

#	Case Name	Tentative
1		
2		
3		
4	Klein – Trust 30-2024-01447902	<i>Klein – Trust (2024-01447902)</i> Motion to Quash Respondent Hope Carreon’s Motion to Quash and accompanying request for sanctions (ROA 84) is DENIED. Pursuant to Code of Civil Procedure sections 1987.1 and 1987.2, Respondent moves to quash Petitioner Christine Klein’s subpoena directed to Fidelity Investments on the ground the subpoena is overbroad, seeks documents that are not relevant, violates decedent’s right to privacy, violates the trust’s right to privacy, and imposes an undue burden on the responding party. Respondent asks for sanctions of \$4,230 in connection with the motion. As an initial matter, Respondent failed to provide the court with a copy of the subpoena she seeks to quash. The court, therefore, cannot determine whether the subpoena is overbroad, seeks documents which are irrelevant or protected by the constitutional right to privacy, or unduly burdensome. For that reason alone, the motion could be denied. Further, as set forth below, even in the abstract, Respondent’s arguments do not support an order quashing the subpoena. Respondent argues the subpoena is overbroad and seeks documents that are not relevant because it references the William John Klein Living Trust dated September 1, 2004 (the “Trust”) rather than the allegedly operative trust entitled the Fifth Amended and Restated Declaration of Trust of the William John Klein Trust executed July 25, 2024. Respondent also argues the subpoena is overbroad because it is not limited to documents relating to the first amendment to the Trust, which Respondent identifies as the only issue